



United States: Legalization and Regulation of Drugs

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This report describes legislation concerning the legalization or regulation of drugs in the United States introduced in the US Congress during the last ten years.¹

Under current federal law, the Controlled Substances Act (CSA)² regulates drugs deemed to pose a risk of abuse and dependence. The CSA applies whether the drugs are medical or recreational, or legally or illegally distributed. Under the CSA, drugs that fall within the purview of the act are classified within five categories of controlled substances (schedules I through V). The schedule on which a controlled substance is placed determines the level of restriction imposed on its production, distribution, and possession, as well as the penalties applicable to any improper handling of the substance.³ Accordingly, any legislation that would legalize or decriminalize a particular controlled substance as a matter of federal law would require changing the substance's classification under a CSA schedule or removing it from the purview of the CSA entirely.

The following is a list of proposed legislation regarding legalization or regulation of drugs that would be considered controlled substances under the CSA introduced in the 112th through the 117th Congresses (2011-2021), which we identified on the official website for U.S. federal legislative information, Congress.gov. Only one bill (H.R. 3884, the MORE Act of 2020) proceeded to a vote. The MORE Act of 2020 passed the House of Representatives by a vote of 228 to 164 and was sent to the Senate, but the Senate did not vote on the bill. No legislation at the federal level has been passed by both houses of Congress and enacted into law.

For more information about the legislative process in the United States Congress, please refer to the following resources:

- *Compiling a Federal Legislative History: A Beginner's Guide*⁴
- *How Our Laws Are Made* (H. Doc. 110-49)⁵

¹ Most legislation concerning the legalization of drugs, in particular marijuana/cannabis, has been conducted at the state level. Lists of states that in recent years have legalized or decriminalized recreational and/or medical cannabis compiled by the advocacy group NORML (formerly, the National Organization for the Reform of Marijuana Laws) may be found at <https://norml.org/laws/>.

² Pub. L. 91-513, 84 Stat. 1236 (1970), codified as amended at 21 U.S.C. § 801 et seq., <https://uscode.house.gov/view.xhtml?path=/prelim@title21/chapter13&edition=prelim>.

³ Joanna R. Lampe, Cong. Rsch. Serv., R45948, *The Controlled Substances Act (CSA): A Legal Overview for the 117th Congress* (2021), <https://crsreports.congress.gov/product/pdf/R/R45948>.

⁴ Law Library of Congress, *Compiling a Federal Legislative History: A Beginner's Guide*, <https://guides.loc.gov/legislative-history>.

⁵ John V. Sullivan, *How Our Laws Are Made*, H.R. Doc. No. 110-49 (2007), <https://www.govinfo.gov/content/pkg/CDOC-110hdoc49/pdf/CDOC-110hdoc49.pdf>.

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Congress	Legislation Number	Title	URL
117th Congress (2021-2022)	H.R. 5657	Medical Marijuana Research Act	https://www.congress.gov/bill/117th-congress/house-bill/5657
117th Congress (2021-2022)	H.R. 3617	MORE Act of 2021	https://www.congress.gov/bill/117th-congress/house-bill/3617
117th Congress (2021-2022)	H.R. 2864	Clean Slate Act of 2021	https://www.congress.gov/bill/117th-congress/house-bill/2864
117th Congress (2021-2022)	S. 1380	Clean Slate Act of 2021	https://www.congress.gov/bill/117th-congress/senate-bill/1380
117th Congress (2021-2022)	H.R. 2830	GRAM Act	https://www.congress.gov/bill/117th-congress/house-bill/2830
117th Congress (2021-2022)	H.R. 365	Marijuana 1-to-3 Act of 2021	https://www.congress.gov/bill/117th-congress/house-bill/365
116th Congress (2019-2020)	H.R. 4323	Marijuana 1-to-3 Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/4323
116th Congress (2019-2020)	H.R. 3884	MORE Act of 2020	https://www.congress.gov/bill/116th-congress/house-bill/3884
116th Congress (2019-2020)	S. 2227	MORE Act of 2019	https://www.congress.gov/bill/116th-congress/senate-bill/2227
116th Congress (2019-2020)	H.R. 3754	To amend the Controlled Substances Act to provide for a new rule regarding the application of the Act to marihuana, and for other purposes.	https://www.congress.gov/bill/116th-congress/house-bill/3754
116th Congress (2019-2020)	H.R. 3546	State Cannabis Commerce Act	https://www.congress.gov/bill/116th-congress/house-bill/3546
116th Congress (2019-2020)	H.R. 3544	Homegrown Act of 2019.	https://www.congress.gov/bill/116th-congress/house-bill/3544
116th Congress (2019-2020)	S. 2032	Cannabidiol and Marihuana Research Expansion Act	https://www.congress.gov/bill/116th-congress/senate-bill/2032

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116th Congress (2019-2020)	S. 2030	State Cannabis Commerce Act	https://www.congress.gov/bill/116th-congress/senate-bill/2030
116th Congress (2019-2020)	H.R. 2843	Marijuana Freedom and Opportunity Act	https://www.congress.gov/bill/116th-congress/house-bill/2843
116th Congress (2019-2020)	S. 1552	Marijuana Freedom and Opportunity Act	https://www.congress.gov/bill/116th-congress/senate-bill/1552
116th Congress (2019-2020)	H.R. 2348	Clean Slate Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/2348
116th Congress (2019-2020)	H.R. 2093	STATES Act	https://www.congress.gov/bill/116th-congress/house-bill/2093
116th Congress (2019-2020)	S. 1028	STATES Act	https://www.congress.gov/bill/116th-congress/senate-bill/1028
116th Congress (2019-2020)	H.R. 2071	Second Amendment Protection Act	https://www.congress.gov/bill/116th-congress/house-bill/2071
116th Congress (2019-2020)	H.R. 2012	Respect States' and Citizens' Rights Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/2012
116th Congress (2019-2020)	H.R. 1893	Next Step Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/1893
116th Congress (2019-2020)	H.R. 1588	Ending Federal Marijuana Prohibition Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/1588
116th Congress (2019-2020)	S. 697	Next Step Act of 2019	https://www.congress.gov/bill/116th-congress/senate-bill/697
116th Congress (2019-2020)	H.R. 1456	Marijuana Justice Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/1456
116th Congress (2019-2020)	S. 597	Marijuana Justice Act of 2019	https://www.congress.gov/bill/116th-congress/senate-bill/597
116th Congress (2019-2020)	H.R. 1119	Responsibly Addressing the Marijuana Policy Gap Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/1119

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116th Congress (2019-2020)	S. 421	Responsibly Addressing the Marijuana Policy Gap Act of 2019	https://www.congress.gov/bill/116th-congress/senate-bill/421
116th Congress (2019-2020)	H.R. 493	Sensible Enforcement of Cannabis Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/493
116th Congress (2019-2020)	H.R. 420	Regulate Marijuana Like Alcohol Act	https://www.congress.gov/bill/116th-congress/house-bill/420
116th Congress (2019-2020)	H.R. 127	CARERS Act of 2019	https://www.congress.gov/bill/116th-congress/house-bill/127
115th Congress (2017-2018)	H.R. 6677	Clean Slate Act of 2018	https://www.congress.gov/bill/115th-congress/house-bill/6677
115th Congress (2017-2018)	H.R. 6669	Clean Slate Act of 2018	https://www.congress.gov/bill/115th-congress/house-bill/6669
115th Congress (2017-2018)	S. 3174	Marijuana Freedom and Opportunity Act	https://www.congress.gov/bill/115th-congress/senate-bill/3174
115th Congress (2017-2018)	H.R. 6043	STATES Act	https://www.congress.gov/bill/115th-congress/house-bill/6043
115th Congress (2017-2018)	S. 3032	STATES Act	https://www.congress.gov/bill/115th-congress/senate-bill/3032
115th Congress (2017-2018)	H.R. 5050	Sensible Enforcement of Cannabis Act of 2018	https://www.congress.gov/bill/115th-congress/house-bill/5050
115th Congress (2017-2018)	H.R. 4825	MEDS Act	https://www.congress.gov/bill/115th-congress/house-bill/4825
115th Congress (2017-2018)	H.R. 4816	Stop Civil Asset Forfeiture Funding for Marijuana Suppression Act of 2018	https://www.congress.gov/bill/115th-congress/house-bill/4816
115th Congress (2017-2018)	H.R. 4815	Marijuana Justice Act of 2018	https://www.congress.gov/bill/115th-congress/house-bill/4815
115th Congress (2017-2018)	S. 1803	MEDS Act	https://www.congress.gov/bill/115th-congress/senate-bill/1803

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115th Congress (2017-2018)	S. 1764	CARERS Act of 2017	https://www.congress.gov/bill/115th-congress/senate-bill/1764
115th Congress (2017-2018)	S. 1689	Marijuana Justice Act of 2017	https://www.congress.gov/bill/115th-congress/senate-bill/1689
115th Congress (2017-2018)	H.R. 3534	State Marihuana And Regulatory Tolerance Enforcement Act	https://www.congress.gov/bill/115th-congress/house-bill/3534
115th Congress (2017-2018)	H.R. 3530	Industrial Hemp Farming Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/3530
115th Congress (2017-2018)	H.R. 2920	CARERS Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/2920
115th Congress (2017-2018)	S. 1374	CARERS Act of 2017	https://www.congress.gov/bill/115th-congress/senate-bill/1374
115th Congress (2017-2018)	S. 1276	Cannabidiol Research Expansion Act	https://www.congress.gov/bill/115th-congress/senate-bill/1276
115th Congress (2017-2018)	H.R. 2528	Respect States' and Citizens' Rights Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/2528
115th Congress (2017-2018)	S. 1008	Therapeutic Hemp Medical Access Act of 2017	https://www.congress.gov/bill/115th-congress/senate-bill/1008
115th Congress (2017-2018)	H.R. 2273	Charlotte's Web Medical Access Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/2273
115th Congress (2017-2018)	H.R. 2020	To provide for the rescheduling of marijuana into schedule III of the Controlled Substances Act.	https://www.congress.gov/bill/115th-congress/house-bill/2020
115th Congress (2017-2018)	H.R. 1841	Regulate Marijuana Like Alcohol Act	https://www.congress.gov/bill/115th-congress/house-bill/1841
115th Congress (2017-2018)	H.R. 1824	Responsibly Addressing the Marijuana Policy Gap Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/1824
115th Congress (2017-2018)	S. 780	Responsibly Addressing the Marijuana Policy Gap Act of 2017	https://www.congress.gov/bill/115th-congress/senate-bill/780

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115th Congress (2017-2018)	H.R. 1227	Ending Federal Marijuana Prohibition Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/1227
115th Congress (2017-2018)	H.R. 975	Respect State Marijuana Laws Act of 2017	https://www.congress.gov/bill/115th-congress/house-bill/975
115th Congress (2017-2018)	H.R. 331	States' Medical Marijuana Property Rights Protection Act	https://www.congress.gov/bill/115th-congress/house-bill/331
114th Congress (2015-2016)	S. 3269	Cannabidiol Research Expansion Act	https://www.congress.gov/bill/114th-congress/senate-bill/3269
114th Congress (2015-2016)	S. 3077	MEDS Act	https://www.congress.gov/bill/114th-congress/senate-bill/3077
114th Congress (2015-2016)	H.R. 4779	CBD Oil Act of 2016	https://www.congress.gov/bill/114th-congress/house-bill/4779
114th Congress (2015-2016)	H.R. 4467	MAILS Act	https://www.congress.gov/bill/114th-congress/house-bill/4467
114th Congress (2015-2016)	S. 2504	MAILS Act	https://www.congress.gov/bill/114th-congress/senate-bill/2504
114th Congress (2015-2016)	S. 2237	Ending Federal Marijuana Prohibition Act of 2015	https://www.congress.gov/bill/114th-congress/senate-bill/2237
114th Congress (2015-2016)	H.R. 3746	State Marihuana And Regulatory Tolerance Enforcement Act	https://www.congress.gov/bill/114th-congress/house-bill/3746
114th Congress (2015-2016)	H.R. 3629	Respect States' and Citizens' Rights Act of 2015	https://www.congress.gov/bill/114th-congress/house-bill/3629
114th Congress (2015-2016)	H.R. 3518	Stop Civil Asset Forfeiture Funding for Marijuana Suppression Act of 2015	https://www.congress.gov/bill/114th-congress/house-bill/3518
114th Congress (2015-2016)	H.R. 3124	Clean Slate for Marijuana Offenses Act of 2015	https://www.congress.gov/bill/114th-congress/house-bill/3124
114th Congress (2015-2016)	H.R. 1940	Respect State Marijuana Laws Act of 2015	https://www.congress.gov/bill/114th-congress/house-bill/1940

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114th Congress (2015-2016)	H.R. 1538	CARERS Act of 2015	https://www.congress.gov/bill/114th-congress/house-bill/1538
114th Congress (2015-2016)	S. 683	Compassionate Access, Research Expansion, and Respect States Act of 2015	https://www.congress.gov/bill/114th-congress/senate-bill/683
114th Congress (2015-2016)	H.R. 1013	Regulate Marijuana Like Alcohol Act	https://www.congress.gov/bill/114th-congress/house-bill/1013
114th Congress (2015-2016)	H.R. 262	States' Medical Marijuana Property Rights Protection Act	https://www.congress.gov/bill/114th-congress/house-bill/262
113th Congress (2013-2014)	H.R. 4046	Unmuzzle the Drug Czar Act of 2014	https://www.congress.gov/bill/113th-congress/house-bill/4046
113th Congress (2013-2014)	H.R. 3483	Protecting Individual Liberties and States' Rights Act	https://www.congress.gov/bill/113th-congress/house-bill/3483
113th Congress (2013-2014)	H.R. 1635	National Commission on Federal Marijuana Policy Act of 2013	https://www.congress.gov/bill/113th-congress/house-bill/1635
113th Congress (2013-2014)	H.R. 1523	Respect State Marijuana Laws Act of 2013	https://www.congress.gov/bill/113th-congress/house-bill/1523
113th Congress (2013-2014)	H.R. 784	States' Medical Marijuana Property Rights Protection Act	https://www.congress.gov/bill/113th-congress/house-bill/784
113th Congress (2013-2014)	H.R. 710	Truth in Trials Act	https://www.congress.gov/bill/113th-congress/house-bill/710
113th Congress (2013-2014)	H.R. 499	Ending Federal Marijuana Prohibition Act of 2013	https://www.congress.gov/bill/113th-congress/house-bill/499
112th Congress (2011-2012)	H.R. 6335	States' Medical Marijuana Property Rights Protection Act	https://www.congress.gov/bill/112th-congress/house-bill/6335
112th Congress (2011-2012)	H.R. 6134	Truth in Trials Act	https://www.congress.gov/bill/112th-congress/house-bill/6134
112th Congress (2011-2012)	H.R. 2306	Ending Federal Marijuana Prohibition Act of 2011	https://www.congress.gov/bill/112th-congress/house-bill/2306